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Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
ESTT.(Estt. A-IV)

(Dated 24 November, 2022)

OFFICE MEMORANDUM

Framing of transfer policy by all cadres and Posting of husband and wife at the same station

A. Rotational Transfer Policy

1. Draft RTP for the CSS laying down guidelines on tenures, postings on promotion, posting on return from leave/deputation, outstation postings, mutual transfers etc. was placed on the website of DOP&T with the aim to harmonise objectives of institutional memory, avoid development of vested interests, and provide exposure to the employees of working in different organisations, inter alia ensuring overall growth of an officer. All the Ministries/Departments were requested to (i) prescribe Minimum Tenure; (ii) set up a mechanism akin to Civil Services Board for recommending transfer; and (iii) place in public domain the transfer policy. **Salient features of the RTP** is at annexure to the OM No. 11013/10/2013-Estt.(A) dated 02nd July, 2015.

2. In addition to the Salient features of the RTP, instructions of Central Vigilance Commission reiterate that sensitive posts should be identified and staff working in these posts strictly rotated after every two/three years to avoid developing vested interests.

[\[O.M No. 11013/10/2013-Estt.\(A\) dated 02.07.2015\]](#)

B. Posting of husband and wife at the same station

1. In view of the utmost importance attached to the enhancement of women's status in all walks of life and to enable them to lead a normal family life as also to ensure the education and welfare of the children, guidelines were issued by DOP&T in O.M No. 28034/7/86-Estt.(A) dated 3.4.86 and No.28034/2/97-Estt.(A) dated 12.6.97 for posting of husband and wife who are in Government service, at the same station. Department had on 23.8.2004 issued instructions to all Mins./Deptts. to follow the above guidelines in letter and spirit.

2. In the context of the need to make concerted efforts to increase representation of women in Central Government jobs, these guidelines were reviewed to see whether the instructions could be made mandatory, and it was decided that when both spouses are in same Central Service or working in same Deptt. and if posts are available, they may

mandatorily be posted at the same station. The consolidated guidelines are as follows:-

- (i) Where the spouses belong to the same All India Service or two of the All India Services, namely IAS, IPS and Indian Forest Service (Group 'A');

The spouse may be transferred to the same cadre by providing for a cadre transfer of one spouse to the Cadre of the other spouse, on the request of the member of service subject to the member of service not being posted under this process to his/her home cadre. Postings within the Cadre will, of course, fall within the purview of the State Govt.

- (ii) Where one spouse belongs to one of the All India Services and the other spouse belongs to one of the Central Services:-

The cadre controlling authority of the Central Service may post the officer to the station or if there is no post in that station, to the State where the other spouse belonging to the All India service is posted.

- (iii) Where the spouses belong to the same Central Service:-

The Cadre controlling authority may post the spouses to the same station.

- (iv) Where the spouse belongs to one Central Service and the other spouse belongs to another Central Service:-

The spouse with the longer service at a station may apply to his/her appropriate cadre controlling authority and the said authority may post the said officer to the station or if there is no post in that station to the nearest station where the post exists. In case that authority, after consideration of the request, is not in a position to accede to the request, on the basis of non-availability of vacant post, the spouse with lesser service may apply to the appropriate cadre authority accordingly, and that authority will consider such requests for posting the said officer to the station or if there is no post in that station to the nearest station where the post exists.

- (v) Where one spouse belongs to an All India Service and the other spouse belongs to a Public Sector Undertaking:-

The spouse employed under the Public Sector Undertaking may apply to the competent authority and said authority may post the said officer to the station, or if there is no post under the PSU in that station, to the State where the other spouse is posted.

- (vi) Where one spouse belongs to a Central Service and the other spouse belongs to a PSU:-

The spouse employed under the PSU may apply to the competent authority and the said authority may post the officer to the station or if there is no post under the PSU in that station, to the station nearest to the station where the other spouse is posted. If, however, the request cannot be granted because the PSU has no post in the said station, then the spouse belonging to the Central Service may apply to the appropriate cadre controlling authority and the said authority may post the said officer to the station or if there is no post in that station, to the station nearest to the station where the spouse employed under PSU is posted.

- (vii) Where one spouse is employed under the Central Govt. and the other

spouse is employed under the state Govt.:-

The spouse employed under the Central Govt. may apply to the competent authority and the competent authority may post the said officer to the station or if there is no post in that station to the State where the other spouse is posted.

- (viii) *"The husband & wife, if working in the same Department and if the required level of post is available, should invariably be posted together in order to enable them to lead a normal family life and look after the welfare of their children especially till the children attain 18 years of age. This will not apply on appointment under the central Staffing Scheme. Where only wife is a Govt. servant, the above concessions would be applicable to the Govt. servant.*

3. Complaints are sometimes received that even if posts are available in the station of posting of the spouse, the administrative authorities do not accommodate the employees citing administrative reasons. In all such cases, the cadre controlling authority should strive to post the employee at the station of the spouse and in case of inability to do so, specific reasons, therefore, may be communicated to the employee.

4. Although, normal channels of representations/complaints redressal mechanism exist in the Min./Depts., added safeguards to prevent noncompliance may be provided by ensuring that the complaints against nonadherence to the instructions are decided by the authorities at least one level above the authorities which took the original decision when they are below the level of secretary to the Govt. of India/Head of the PSU concerned and all such representations are considered and disposed off in time bound manner.

[\[O.M No. 28034/9/2009-Estt.\(A\) dated 30.09.2009\]](#)

C. Posting of physically handicapped candidates and parents of mentally retarded children

1. In the case of holders of Group-C or Group-D posts who have been recruited on regional basis and who are physically handicapped, such persons may be given posting, as far as possible, subject to administrative constraints, near their native places within the region.

2. Requests from physically handicapped employees belonging to Groups A, B, C and D for transfer to or near their native places may also be given preference.

3. Considering that the facilities for medical help and education of mentally retarded children may not be available at all stations, a choice in the place of posting is likely to be of some help to the parent in taking care of such a child. While administratively it may not be possible in all cases to ensure posting of such employees at a place of his/her choice, Ministries/Departments are requested to take a sympathetic view on the merits of each case and accommodate such requests for position to the extent possible.

[\[O.M No. 14017/16/2002-Estt.\(RR\) dated 13/03/2002\]](#)

[\[O.M No. 14017/41/1990-Estt.\(RR\) dated 15/02/1991\]](#)

[\[O.M No. 14017/41/1990-Estt.\(RR\) dated 10/05/1990\]](#)

D. In case any reference to the relevant OM is required, the same may be accessed by clicking on the hyperlink given below or from the DOPT's website.

1. [O.M. No. 11013/10/2013-Estt.\(A\) dated 02.07.2015](#)
2. [O.M. No.41017/2/2015-Estt.\(A\)dated 17.04.2015](#)
3. [O.M. No.11013/10/2013-Estt.\(A\)dated 31.07.2014](#)
4. [O.M. No.11013/10/2013-Estt.\(A\)dated 13.06.2014](#)
5. [O.M. No.28034/9/2009-Estt.\(A\)dated 30.09.2009](#)
6. [O.M. No. 28034/23/2004-Estt.\(A\)dated 23.08.2004](#)
7. [O.M. No. 28034/2/97-Estt.A\)dated 12.06.1997](#)
8. [O.M. No.28034/7/86-Estt.\(A\)dated 03.04.1986](#)

E. All Ministries/Departments are requested to follow the above instructionsincluding the instructions contained in the OMs mentioned in it,strictly and to ensure its wide circulation amongst all the concerned.
